

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4105

By: Ford

7
8 COMMITTEE SUBSTITUTE

9 An Act relating to professions and occupations;
10 amending 59 O.S. 2021, Section 1750.2, which relates
11 to the Oklahoma Security Guard and Private
12 Investigator Act definitions; clarifying the
13 definition of security guard; exempting certain
14 persons from definition; and providing an effective
15 date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 59 O.S. 2021, Section 1750.2, is
18 amended to read as follows:

19 Section 1750.2. As used in the Oklahoma Security Guard and
20 Private Investigator Act:

21 1. "Client" means any person or legal entity having a contract
22 with a person or entity licensed pursuant to the Oklahoma Security
23 Guard and Private Investigator Act, which contract authorizes
24 services to be performed in return for financial or other
25 considerations;

1 2. "Council" means the Council on Law Enforcement Education and
2 Training;

3 3. "License" means authorization issued by the Council pursuant
4 to the Oklahoma Security Guard and Private Investigator Act
5 permitting the holder to perform the functions of a security guard,
6 armed security guard, private investigator, investigative agency, or
7 security agency;

8 4. "Private investigator" means a person who is self-employed,
9 or contracts with, or is employed by an investigative agency for the
10 purpose of conducting a private investigation and reporting the
11 results to the employer or client of the employer relating to:

- 12 a. potential or pending litigation, civil or criminal,
- 13 b. divorce or other domestic investigations,
- 14 c. missing persons or missing property, or
- 15 d. other lawful investigations, but shall not include:

16 (1) a person authorized or employed by the United
17 States government, any state government, or any
18 agency, department, or political subdivision
19 thereof while engaged in the performance of
20 official duties,

21 (2) a person or employee of a firm, corporation or
22 other legal entity engaged exclusively in a
23 profession licensed by any board, commission,
24 department or court of this state, or

1 (3) a bona fide, salaried, full-time employee of a
2 firm, corporation or other legal entity not in
3 the primary business of soliciting and providing
4 private investigations, who conducts
5 investigations that are exclusive to and
6 incidental to the primary business of said firm,
7 corporation or entity, and when the costs of such
8 investigations are not charged directly back to
9 the particular client or customer who directly
10 benefits from the investigation;

11 5. "Armed private investigator" means a private investigator
12 authorized to carry a firearm;

13 6. "Security agency" means a person, firm, corporation, or
14 other private legal entity in the business of security guard
15 services or armed security guards for hire;

16 7. "Security guard" means an individual contracting with or
17 employed by a security agency, private business or person to prevent
18 trespass, theft, misappropriation, wrongful concealment of
19 merchandise, goods, money or other tangible items, or engaged as a
20 bodyguard or as a private watchman to protect persons or property,
21 but shall not include:

22 a. for individuals operating unarmed, any person employed
23 as a private watchman or security guard by one
24 employer only in connection with the affairs of such

1 employer where there exists an employer-employee
2 relationship,

3 b. for any event, including, but not limited to,
4 concerts, festivals, and sporting events, for
5 individuals operating unarmed, any person contracted
6 as an usher queue agent, ticket agent, gate agent,
7 credential verification agent, or similar role,

8 c. a full-time or active reserve certified peace officer
9 of the United States, this state, or any political
10 subdivision of either:

11 (1) while such peace officer is engaged in the
12 performance of his or her official duties within
13 the course and scope of his or her employment
14 with the United States, this state, or any
15 political subdivision of either,

16 (2) while such peace officer is engaged in the
17 performance of his or her duties as a railroad
18 police officer,

19 (3) who receives compensation for private employment
20 on an individual or an individual independent
21 contractual basis as a patrolman, guard, or
22 watchman if such person is employed in an
23 employer-employee relationship or is employed on
24 an individual contractual basis, or

(4) who receives compensation from an employer-employee relationship or an individual independent contractor basis with any licensed security agency as defined in this section or any private business or person to perform security or investigative services,

~~e.~~

d. any person whose terms of employment as a security guard are governed by a collective bargaining agreement on May 9, 1989, and

~~d.~~

e. any person who is employed as a full-time security guard by a financial institution on May 9, 1989;

8. "Armed security guard" means a security guard authorized to carry a firearm;

9. "Investigative agency" means a self-employed private investigator, a firm, a corporation, or other private legal entity in the business of soliciting the business of private investigation and/or providing private investigations and investigators;

10. "Special event" means a public activity in the form of an athletic contest, charity event, exposition or similar event that occurs only on an annual or noncontinuing basis; and

11. "Special event license" means a temporary license issued pursuant to the Oklahoma Security Guard and Private Investigator Act

1 which restricts the license holder to employment as a security guard
2 only for the duration of a particular event.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
6 OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended.

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